

Scots Criminal Law

Revision Answers — IRAC Method

Questions 1–10 | Scottish Law | Full Authority

Document structure: Each question is divided into lettered sub-issues. Every sub-issue follows a strict colour-coded IRAC label:

- **[ISSUE]** — navy blue
- **[RULE]** — dark blue
- **[APPLICATION]** — green
- **[CONCLUSION]** — dark orange

Each issue also has a styled blue header box naming the specific crime or defence charged.

Question 1 — Scott and the Halloween Shopping

Scott loves Halloween. Shopping in his local supermarket, he sees a skeleton costume which he thinks would be perfect for him. It is, however, expensive. The shop is very quiet, and Scott takes the costume off the shelf surreptitiously without anyone noticing. He manages to place it at the far side of one of the check-outs. He then queues and pays for his shopping at another check-out and sweeps the costume into his trolley as he exits the store. He resolves to wear it on Halloween and return it the next day.

He decides that he also needs several large pumpkins, but he does not want to pay for these either. He finds an old clown costume and puts this on. He goes back to the supermarket and tells a member of staff named Cassie that he works for a children's charity and would welcome a donation of pumpkins for Halloween. Cassie finds him convincing but asks for some identification. Scott flashes in front of her a Disney fan club membership card which has cartoon characters printed on it. Cassie almost hands over the pumpkins but then decides to show the card to her manager who examines it in detail and is highly suspicious. The manager blocks the handover of the pumpkins and Scott leaves the store quickly.

Leaving the supermarket, he is angry, and he is still wearing the clown outfit, which includes a mask which completely obscures his face. He climbs on to the roof of a car in the car park and starts shouting, while banging his feet on the roof. People turn to look, and he shouts, "Someone better get me a pumpkin ... or else". He is pleased that some people are alarmed and continues to behave in this way till supermarket security staff approach.

Which crimes in Scots law may have been committed by Scott? Give full reasons for your answer citing authority as appropriate.

Scott's conduct at the supermarket and in the car park raises potential liability for theft, attempted fraud, and breach of the peace under Scots criminal law. Each will be analysed in turn using the IRAC method.

(A) Theft of the Skeleton Costume

Crime: Theft — Common Law

[ISSUE] Did Scott commit theft of the skeleton costume?

[RULE] Theft in Scots law is the appropriation of property belonging to another without the owner's consent and with the intention to deprive, even temporarily. In *Milne v Tudhope* (1981 JC 53) the court confirmed that a temporary deprivation of a significant nature falls within the scope of theft. The nomen juris does not require an intent to permanently deprive — unlike English law. The actus reus is the act of appropriation; the mens rea is the dishonest intent to deprive.

[APPLICATION] Scott took the costume from the shelf and concealed it by placing it at the far side of a different check-out, then swept it into his trolley without paying. This is a deliberate, clandestine appropriation of property belonging to the supermarket without consent. Critically, Scott's resolve "to wear it on Halloween and return it the next day" does not negate theft in Scots law. Per *Milne v Tudhope*, a temporary deprivation suffices. He assumed possession and control of the property, completing the appropriation.

[CONCLUSION] Scott is guilty of theft of the skeleton costume. His subjective intention to return it is irrelevant under Scots law. The appropriation was completed when he placed the item in his trolley and left the check-out area without paying.

(B) Attempted Fraud Regarding the Pumpkins

Crime: Attempted Fraud — Common Law

[ISSUE] Did Scott commit fraud or attempted fraud in relation to the pumpkins?

[RULE] Fraud in Scots law is the conveyance of a false impression to a victim with the deliberate aim of achieving a specific practical result: *Adcock v Archibald* (1925 JC 58). It requires (1) a false pretence; (2) a causal link between the pretence and the result; and (3) mens rea — knowledge of falsity and intention to achieve the result. A false pretence can be implied by conduct (*Barnard*) or by a false assertion of identity (*Morrison v Robertson*). Presenting a document as genuine when it is not can also ground a charge of uttering: *Macdonald v Tudhope* (1983 SCCR 341). Where the result is not achieved, the accused may be convicted of attempted fraud.

[APPLICATION] Scott falsely represented himself as a charity worker by wearing a clown costume and verbally claiming to collect for a children's charity. He then presented a Disney fan club membership card as if it were proof of his charitable status — a clear false pretence by both conduct and assertion. The causal link is established: had the manager not intervened, Cassie would have handed over the pumpkins on the strength of Scott's false

pretence. The fraud was not completed because the manager blocked the handover, meaning the practical result — obtaining the pumpkins — was never achieved. However, Scott had done everything necessary to complete the fraud; the failure was due to an external intervention. This constitutes attempted fraud.

[CONCLUSION] Scott is guilty of attempted fraud. All elements of fraud were present save for the achievement of the practical result, which was thwarted by the manager. The charge of attempted fraud is well established.

(C) Breach of the Peace / Threatening Behaviour in the Car Park

Crime: Breach of the Peace / Threatening or Abusive Behaviour — s.38 Criminal Justice and Licensing (Scotland) Act 2010

[ISSUE] Did Scott commit a breach of the peace or threatening behaviour in the car park?

[RULE] Breach of the peace at common law consists of conduct "severe enough to cause alarm to ordinary people and threaten serious disturbance to the community": *Smith v Donnelly* (2002 JC 65). The conduct must be genuinely alarming and disturbing and not merely annoying. Section 38 of the Criminal Justice and Licensing (Scotland) Act 2010 also created the statutory offence of threatening or abusive behaviour, which requires behaviour that a reasonable person would consider threatening or abusive, with the accused either intending to cause fear or alarm or being reckless as to whether their behaviour would do so.

[APPLICATION] Scott climbed on top of a car, banged his feet on the roof, shouted threatening words — "Someone better get me a pumpkin... or else" — while wearing a mask that completely obscured his face. He was pleased that people were alarmed and continued until security staff approached. His conduct was objectively alarming: members of the public turned to look and some were alarmed. The threatening words with the menacing "or else" were directed at bystanders. Wearing a full mask in a public place while behaving in this way significantly aggravates the threatening character of the conduct. Under both common law and s.38, the threshold is met: the conduct was such that a reasonable person would consider it threatening, and Scott was subjectively pleased by the alarm caused, demonstrating intention to cause fear.

[CONCLUSION] Scott is liable for breach of the peace at common law and/or threatening or abusive behaviour under s.38 of the 2010 Act. His conduct was objectively threatening and his subjective satisfaction at causing alarm confirms the requisite mens rea.

Question 2 — Annie: Available Defences

Annie went to school with Edward. She is unhappy to meet up with him again, by chance. Edward tells Annie that he has a job for her. It turns out that Edward wants Annie to take part in a bank robbery due to take place in a week's time. Edward tells Annie that, if she says "no", Edward will break her legs and that he'll arrange a car crash for her partner. Annie was afraid of Edward at school and believes all that he says about injuring her and her partner. She is terrified and does as he says which involves going to the bank wearing a stocking mask and threatening staff and customers with a replica firearm while Edward takes money from a cashier.

She is so shaken by the experience that, when she returns home, she finds her partner's anti-anxiety medication and takes two tablets. The instructions on the bottle clearly state that one tablet is to be taken when required. The medication makes her feel very strange and she goes out for a walk to clear her head. While she is out, she feels that she must scratch the paintwork off all yellow cars parked nearby. She is vaguely aware that this is wrong, but she is unable to stop herself.

Her walk takes her along the river. It has been raining heavily for days and the water is running very high. She overhears people saying that the river is in danger of bursting its banks. She is afraid that she will be swept into the water. She sees a bicycle lying beside the path. She takes it and cycles off so that she can get off the river path more quickly. She ignores the bike's owner who shouts at her to give it back. Once away from the river, she decides to cycle all the way home because this will be quicker than walking.

Annie has been charged with robbery in relation to the incident in the bank, vandalism (under s 52 of the Criminal Law (Consolidation) (Scotland) Act 1995) for the damage to the yellow cars and theft of the bicycle. Which defences in Scots criminal law might be available to her and why? Give full reasons for your answer, citing authority as appropriate.

Annie has been charged with robbery, vandalism, and theft of the bicycle. The question asks which defences in Scots criminal law might be available to her. Each charge will be considered separately.

(A) Robbery — Defence of Coercion

Defence: Coercion / Compulsion

[ISSUE] Does Annie have a defence of coercion to the robbery charge?

[RULE] Coercion (or compulsion) is a recognised defence in Scots law where the accused acted under an immediate threat of death or serious bodily harm which they could not reasonably avoid: *Thomson v HM Advocate* (1983 JC 69). The requirements are: (1) the threats must be of immediate death or serious injury to the accused or a person close to them; (2) they must be directed specifically at the accused; (3) the accused must have had no reasonable opportunity to escape; and (4) the accused must not have voluntarily exposed themselves to the risk of being coerced. Coercion is not available as a defence to murder, but it is available to robbery.

[APPLICATION] Edward threatened to break Annie's legs and arrange a car crash for her partner — threats of serious bodily harm to Annie and her partner. Annie genuinely believed these threats, having been afraid of Edward since school. The threats were directed specifically at her. The question of whether Annie had a reasonable opportunity to escape or report the matter to the police is central: the threat was made a week before the robbery, which might suggest she had time and opportunity to seek police assistance. However, the test is not whether she could have reported it, but whether the threats were such that she had no reasonable alternative at the time she participated. Courts will consider the subjective terror of the accused alongside objective reasonableness. Annie's genuine and reasonable belief in the threats is strongly supported. The defence is likely available but may fail if the court finds she had adequate opportunity to alert the police during the intervening week.

[CONCLUSION] Annie has a strong, though not certain, argument of coercion. The defence is likely to be left to the jury. The primary weakness is the one-week gap between the threat and the offence, which may undermine the immediacy requirement. However, the continuing nature of the threat and her genuine belief provide a credible basis for the defence.

(B) Vandalism of the Yellow Cars — Non-Insane Automatism

Defence: Non-Insane Automatism (Ross v HM Advocate)

[ISSUE] Does Annie have a defence to vandalism in relation to the scratching of the yellow cars?

[RULE] Non-insane automatism is a complete defence in Scots law where an external factor, not attributable to the accused, causes a total alienation of reason and loss of self-control: *Ross v HM Advocate* (1991 JC 210). The three-part test from *Sorley v HM Advocate* (1992 SCCR 396) requires: (1) the accused was affected by an external factor; (2) the external factor was not self-induced and was unforeseeable; and (3) it resulted in a total alienation of reason. Importantly, if the accused voluntarily consumed alcohol or drugs, the Ross defence is unavailable: *Brennan v HM Advocate* (1977 JC 38).

[APPLICATION] Annie took her partner's anti-anxiety medication. Critically, she took two tablets when the instructions clearly stated only one should be taken — she deliberately doubled the prescribed dose. This voluntary decision to exceed the prescribed dosage is akin to self-induced intoxication and may undermine the "unforeseeable" limb of the Ross test. Furthermore, while Annie was "vaguely aware that this is wrong, but unable to stop herself", this suggests impaired rather than totally alienated reason — the test requires a total, not partial, loss of control. However, if the court views the doubling of medication as an error rather than deliberate drug-seeking behaviour, the defence might still be available. The external factor (medication beyond therapeutic dose) was real, but whether it was truly unforeseeable that doubling the dose would cause unusual effects is debatable.

[CONCLUSION] The automatism defence is unlikely to succeed for Annie. She voluntarily took double the prescribed dose, making the loss of control arguably self-induced. The partial awareness she retained also fails to meet the "total alienation of reason" standard. The court will likely treat this as self-induced impairment, following the reasoning in *Brennan*.

(C) Theft of the Bicycle — Necessity

Defence: Necessity

[ISSUE] Does Annie have a defence of necessity in relation to the bicycle?

[RULE] Necessity is a limited defence in Scots law available where the accused was compelled by an immediate threat of serious harm to commit an offence, and had no reasonable alternative. It is closely related to coercion but arises from circumstances rather than human threats. The defence requires: (1) an immediate and serious danger; (2) that the accused had no reasonable alternative but to commit the offence; and (3) proportionality between the harm threatened and the harm caused.

[APPLICATION] Annie took the bicycle because she was afraid of being swept into the flooding river — an immediate threat of drowning. At the moment of taking the bicycle, a genuine and reasonable belief in the necessity is present: the river was dangerously high and she feared being swept in. The taking of a bicycle to escape a flooded riverbank is proportionate to the threat. However, crucially, once Annie was away from the river she decided to cycle all the way home for convenience. This latter conduct — continuing to use the bicycle after the necessity had abated — would not be covered by the necessity defence. The necessity defence may cover the initial taking but Annie is not covered for the continued use after she was safe.

[CONCLUSION] Annie has a good necessity defence for the initial taking of the bicycle from the riverbank. However, her continued use of the bicycle after escaping the danger is not protected. The prosecution may argue she should have returned the bicycle once safe. The defence is partial — it may reduce rather than eliminate liability, and the court may consider the overall picture.

Question 3 — Sylvia's Liability

Sylvia lives in a rural village which hosts a summer fete each year. As part of the fete there is a competition with a £100 prize for the person who enters the “heaviest home-grown courgette”. Sylvia does not like gardening but wants to win the prize money. She buys a courgette in the supermarket. Once at home, she removes one end of the courgette and hollows it out. She then fills it with sand and superglues the end back on. Pleased with her creative efforts, Sylvia takes the courgette to the fete and deposits it with the competition organiser. He does not, to Sylvia’s relief, ask any questions about the courgette or its origins. At the end of the fete, all of the courgettes entered are weighed by the judges. Sylvia wins the competition and is awarded the prize money.

After the fete Sylvia walks home. Bridget, who lives nearby, invites Sylvia into her house for a glass of champagne. Sylvia enters and walks past Bridget, who is holding the door open for her. Bridget has already started making conversation about the competition. Sylvia wants to leave because she does not want to answer any questions about her prize-winning courgette, but Bridget happens to be standing between her and the door. Sylvia places her hand on Bridget’s shoulder and forcefully pushes her out of the way, before running out of the house. Bridget, who is elderly and has a weak heart, falls backwards against the wall and suffers a stress-induced heart attack. She dies instantly.

Meanwhile, Sylvia continues walking home but is feeling increasingly worried about the events of the day. She is so preoccupied that she does not notice Monica, a tourist from Canada who is visiting the village, walking towards her. They nearly walk into one another, but the clash is avoided when Monica moves out of the way. Monica says a polite hello to Sylvia. Startled and annoyed, Sylvia utters several swear words, and shakes her fist in the air while shouting angrily at Monica: “Stay out of my way or you’ll be sorry! Actually, every single person in this village needs to stay out of my way or they’ll be sorry!” Although other people on the street appear to be shocked, Monica, who normally works as a police officer in Canada, is not alarmed and tries to calm Sylvia down.

Advise on Sylvia’s liability under Scots criminal law. Give full reasons for your answer, citing authority as appropriate.

Sylvia's conduct raises potential liability for fraud, assault, culpable homicide, and breach of the peace or threatening behaviour.

(A) The Weighted Courgette — Fraud

Crime: Fraud — Common Law

[ISSUE] Did Sylvia commit fraud by entering a tampered courgette in the competition?

[RULE] Fraud in Scots law requires: (1) a false pretence; (2) practised with intent to deceive; (3) causing a definite practical result: *Adcock v Archibald* (1925 JC 58). The false pretence can take the form of implied representation — conduct that conveys a false impression:

Barnard. It is not necessary that the victim be subjectively deceived in their mind; the focus is on whether the pretence caused the practical result. An implied representation of authenticity is sufficient.

[APPLICATION] Sylvia presented a hollowed and sand-filled courgette as a genuine home-grown courgette to the competition organiser. By submitting it to the competition without disclosing its modified nature, she impliedly represented it to be a legitimate entry — a genuine home-grown courgette entered on its own merits. This is a false pretence by conduct (implied representation). The practical result — being awarded the £100 prize — was directly caused by this false pretence. The judges weighed the courgette and awarded her first place on the false basis that it was genuinely the heaviest home-grown specimen. The causal link between the false pretence and the practical result (obtaining the prize money) is clear. Sylvia knew the representation was false and intended the result.

[CONCLUSION] Sylvia is guilty of fraud. All elements are satisfied: false pretence by conduct (submitting a tampered courgette as genuine), a causal link to a definite practical result (winning the £100 prize), and the requisite mens rea (knowledge of falsity and intention to obtain the prize).

(B) The Push of Bridget — Assault and Culpable Homicide

Crimes: Assault and Culpable Homicide — Common Law

[ISSUE] Is Sylvia guilty of assault and culpable homicide in relation to Bridget's death?

[RULE] Assault in Scots law is any intentional attack upon the person of another — any deliberate application of force done with "evil intent": *Atkinson v HM Advocate* (1987 SCCR 534). Recklessness does not suffice — there must be intent to attack. Culpable homicide arises where death is caused by an unlawful act (here, assault) without the wicked intention or recklessness necessary for murder. The thin skull rule applies in Scots criminal law: the accused takes their victim as they find them — *McKinnon v HM Advocate* (2003 JC 29). A victim's existing vulnerability does not break the chain of causation.

[APPLICATION] Sylvia placed her hand on Bridget's shoulder and forcefully pushed her out of the way to make her escape. This was a deliberate, intentional application of force — an assault. The motive (wanting to leave quickly) is irrelevant to the existence of the evil intent; the assault was a wilful act. Bridget suffered a stress-induced heart attack as a consequence and died. Sylvia did not know of Bridget's weak heart, but under the thin skull rule she must take Bridget as she finds her. The chain of causation between the push and the death was not broken — it was not a voluntary, free, and deliberate act by Bridget that intervened. The force used was not remotely close to the wicked recklessness or wicked intention required for murder — Sylvia simply wanted to get past Bridget. Therefore the appropriate charge is assault, and given the death, culpable homicide.

[CONCLUSION] Sylvia is guilty of assault of Bridget. Because that assault caused Bridget's death, she is also guilty of culpable homicide. The thin skull rule ensures the fact that Bridget had a weak heart does not exonerate Sylvia. The charge will be culpable homicide rather than murder as there was no wicked intent or wicked recklessness.

(C) The Threats to Monica — Breach of the Peace / Threatening Behaviour

Crime: Breach of the Peace / s.38 Criminal Justice and Licensing (Scotland) Act 2010

[ISSUE] Did Sylvia commit a breach of the peace or threatening behaviour towards Monica and bystanders?

[RULE] Breach of the peace requires conduct severe enough to cause alarm to ordinary people and threaten serious disturbance to the community: *Smith v Donnelly* (2002 JC 65). Critically, the disturbance to the community may be evidenced by the reaction of onlookers even if the immediate target is not alarmed. Under s.38 of the Criminal Justice and Licensing (Scotland) Act 2010, threatening or abusive behaviour requires conduct that a reasonable person would consider threatening or abusive, combined with intention or recklessness as to whether it causes fear or alarm. It is not necessary that the individual addressed is alarmed — the impact on others suffices.

[APPLICATION] Sylvia shouted swear words, shook her fist, and made direct threats: "Stay out of my way or you'll be sorry!" She then escalated this to a generalised threat to everyone in the village: "every single person in this village needs to stay out of my way or they'll be sorry!" Other people on the street appeared shocked. While Monica, as a trained police officer from Canada, was not personally alarmed, this does not prevent a finding of breach of the peace — the reaction of the ordinary bystanders who appeared shocked is sufficient. The generalised nature of the threat to the entire village population amplifies the public disorder element. Under s.38, the conduct was objectively threatening and Sylvia's state of agitation suggests she was at least reckless as to whether it caused fear or alarm.

[CONCLUSION] Sylvia is guilty of breach of the peace at common law and/or threatening or abusive behaviour under s.38 of the 2010 Act. Monica's personal composure as a trained officer does not exonerate Sylvia — the reaction of ordinary bystanders who appeared shocked is the relevant measure, and the broad threats to the entire village community provide a strong basis for the charge.

Question 4 — Max's Criminal Liability

Question 4

Max is married to Martina, who is, unbeknownst to Max, having an affair with her colleague Clive. One morning Martina is at work and decides to tell Max the truth. She telephones Max, who is at home, and informs him that she is having a sexual relationship with Clive and that she plans to leave him to be with Clive.

Max is very upset and angry at this news. He sits at home for a couple of hours pondering what to do and eventually decides to go to the office to confront Martina and Clive. Before leaving the house, he grabs a knife from the kitchen. Once outside he remembers that his car is in the garage as it is being repaired. However, he notices a bicycle leaning against the front porch of his neighbour Kevin's house. Max shouts "Can I take your bicycle" to Kevin, who happens to be outside in his garden. Kevin refuses, replying that he needs to use the bicycle later that day. Max jumps on the bicycle anyway and, as he cycles away, he shouts over his shoulder, "Don't worry Kevin - I'll bring it back at some point!"

Max cycles to the office building where Martina and Clive work, and he takes the elevator up to the office floor on which they work. When he exits the elevator, he is enraged to see the two of them standing in conversation, and marches over. He stabs Martina in the chest with the knife, and she dies almost immediately. He then stabs Clive in the neck. Although Clive is critically injured, he survives. As Clive is lying on the floor injured, Max notices that Clive's wallet has fallen out of his pocket and is lying next to him on the floor. He takes a £20 note from Clive's wallet, muttering "serves you right", before exiting the building.

Advise on Max's liability under Scots criminal law. Give full reasons for your answer, citing authority as appropriate.

Max's conduct raises potential liability for theft of the bicycle, murder of Martina, assault/attempted murder of Clive, and robbery of Clive's £20.

(A) Taking Kevin's Bicycle — Theft

Crime: Theft — Common Law

[ISSUE] Did Max commit theft of Kevin's bicycle?

[RULE] Theft requires appropriation of another's property without consent and with intent to deprive. In Scots law, temporary deprivation can suffice: *Milne v Tudhope* (1981 JC 53). The absence of consent is critical — if property is taken against the owner's express refusal, there is no consent. The owner's subjective state of mind (consent or lack thereof) is ascertained objectively from all circumstances.

[APPLICATION] Kevin expressly refused Max's request to borrow the bicycle, stating he needed it later that day. Max took it anyway. This is an appropriation of Kevin's property

without consent — consent was expressly refused. Max's statement "I'll bring it back at some point" does not negative the appropriation or indicate that Kevin consented; Max was simply acting unilaterally. Even if Max intended to return the bicycle, temporary deprivation following an express refusal constitutes theft in Scots law.

[CONCLUSION] Max is guilty of theft of the bicycle. Kevin's express refusal means there was no consent. The intention to return it at some unspecified future point does not prevent conviction for theft under Scots law.

(B) Killing of Martina — Murder

Crime: Murder — Common Law

[ISSUE] Is Max guilty of murder of Martina?

[RULE] Murder in Scots law is the unlawful killing of another with "wicked intention to kill" or "wicked recklessness": *HM Advocate v Drury* (2001 SCCR 538). There is no partial defence of provocation by mere words in all circumstances — however, in Scots law, words alone can constitute provocation sufficient to reduce murder to culpable homicide: *HM Advocate v McKean* (1996 SCCR 402). For provocation to succeed the accused must have (1) been provoked by the conduct; (2) lost their self-control as a result; and (3) there must be proportionality between provocation and response. Importantly, time to cool down is a significant factor.

[APPLICATION] Max stabbed Martina in the chest with a knife he had collected from his home before travelling to the office. The deliberate collection of a knife and the subsequent journey to the office building demonstrate premeditation — he formed the intention to use it before arriving. Stabbing in the chest is a highly dangerous act clearly capable of killing. Max had wicked intention to kill. As to provocation: Martina told Max about the affair by phone, giving him "a couple of hours" to ponder before he went to confront them. This cooling-off period is likely fatal to a provocation plea — the proportionality and spontaneity requirements are not met where the accused had time to reflect and then armed himself. The premeditation is inconsistent with the loss of self-control that provocation requires.

[CONCLUSION] Max is guilty of murder of Martina. There is clear wicked intention to kill evidenced by premeditation (collecting the knife, travelling to the office). The provocation defence will likely fail given the cooling-off period and the deliberate arming of himself before departure.

(C) Stabbing of Clive — Assault / Attempted Murder

Crime: Attempted Murder / Serious Assault — Common Law

[ISSUE] Is Max guilty of attempted murder or serious assault of Clive?

[RULE] Assault is any intentional attack on another with evil intent: *Atkinson v HM Advocate*. Attempted murder requires proof that the accused had a wicked intention to kill and took a substantial step beyond mere preparation toward killing: *HM Advocate v Camerons* (1911 JC 110). Stabbing in the neck is evidence of a direct attempt on life. Clive's survival is irrelevant to the charge of attempted murder or serious assault with intent to kill.

[APPLICATION] Max stabbed Clive in the neck with a knife after stabbing Martina fatally. A stab wound to the neck is objectively life-threatening and demonstrates wicked intention to kill or at the very least wicked recklessness. Clive was critically injured but survived. The act

goes well beyond mere preparation — it is the direct execution of the attack. There is no provocation plea likely to succeed for the same reasons as above, and in any event provocation reduces murder to culpable homicide; it does not apply to non-fatal offences.

[CONCLUSION] Max is guilty of attempted murder of Clive, alternatively serious assault with intent to kill. The neck stab is direct evidence of wicked intention or wicked recklessness. Clive's survival is a matter of chance, not of legal significance to the charge.

(D) Taking £20 from Clive's Wallet — Robbery

Crime: Robbery — Common Law

[ISSUE] Is Max guilty of robbery in relation to the £20 taken from Clive's wallet?

[RULE] Robbery is theft accomplished by personal violence or threats: *MacPherson v HM Advocate*. The violence and the taking must be connected — the violence (or its aftermath) must be used to facilitate or accompany the taking of property. In Scots law the assault is typically subsumed into the robbery charge when there is sufficient connection between the two.

[APPLICATION] Max had just stabbed Clive, leaving him critically injured on the floor. He then noticed Clive's wallet and took £20 from it. The violence that rendered Clive incapacitated was the direct means by which Max was able to take the money without resistance. The taking occurred immediately after the stabbing while Clive lay injured. Max's muttering "serves you right" shows the taking was intentional and connected to his attack on Clive. The assault is sufficiently connected to the taking to constitute robbery. If the court views the taking as entirely unrelated to the violence — a spontaneous opportunistic decision — it might be charged as theft, but the temporal and circumstantial proximity makes robbery the more appropriate charge.

[CONCLUSION] Max is most likely guilty of robbery. The violence against Clive and the taking of money are sufficiently connected — he was only able to take the money because Clive was incapacitated by the stabbing. Alternatively, if the connection is found insufficient, theft would be charged.

Question 5 — David's Criminal Liability

David lives with his sister, Monique. It will be her birthday soon and David wants to give her a present, but unfortunately, he does not have very much money with which to buy one. He has however, on occasion, seen his colleague Ava wearing a beautiful silver locket that he thinks would suit Monique. One day David is walking through the car park outside the office building where he and Ava work, when, much to his delight, he notices the locket lying on the front seat of Ava's car. Ava is nowhere in sight and he decides to use the opportunity to obtain the locket. Much to his surprise he finds that the car door is unlocked, and he takes the locket.

Later that day, David is in the staff room at work. Ava enters and asks David whether he has seen her locket anywhere as she is concerned it has been stolen. David is worried that Ava is suspicious of him and he wants to leave the room so that he does not need to answer any questions about the missing locket. Ava happens to be standing between David and the door. David places his hand on Ava's shoulder and forcefully pushes her out of the way, before running out of the staffroom. Ava, who has a heart condition, falls backwards onto the floor and suffers a stress-induced heart attack. She is later discovered by another colleague and rushed to hospital in an ambulance, where she is placed on a life support machine. A week later, there is no improvement, and the life support machine is switched off. Ava is pronounced dead. According to the doctors who treated Ava, if she had been found sooner after her heart attack, she might not have died.

After the incident in the staffroom David goes straight home, where he finds Monique in the garden of their semi-detached house. He presents her with the locket as an early birthday present. Monique is not impressed, telling David that she prefers gold jewellery. David is annoyed that she does not appreciate the gift. He shakes his fist in the air while shouting angrily at Monique: 'You ungrateful bitch! Stay out of my way the rest of the day or the only thing I'll do with this necklace is use it to choke you with'. He then continues to shout a series of further insults at Monique.

Which crimes in Scots criminal law may have been committed by David? Give full reasons for your answer, citing authority as appropriate.

David's conduct gives rise to potential liability for theft of the locket, assault and culpable homicide of Ava, and threatening behaviour or breach of the peace in relation to Monique.

(A) Taking the Locket — Theft / Housebreaking

Crime: Theft (Aggravated by Opening a Locked/Unlocked Conveyance)

[ISSUE] Did David commit theft of the silver locket from Ava's car?

[RULE] Theft requires appropriation of another's property without consent and with intent to deprive: *Milne v Tudhope* (1981 JC 53). Temporary intent to deprive suffices in Scots law. Where the theft involves opening a vehicle or building, this can constitute theft by opening

lockfast places, or theft from a conveyance. Here, the car was unlocked, so the aggravation of "opening lockfast places" does not apply. The taking is nonetheless theft.

[APPLICATION] David saw the locket in Ava's car, found the car unlocked, and took the locket without Ava's knowledge or consent. He was motivated by desire to give it as a gift. Ava was not present and had not consented. There was a clear intention to deprive Ava of the locket. The fact that the car was unlocked does not prevent this being theft; consent to enter the vehicle was not given.

[CONCLUSION] David is guilty of theft of the locket. All elements are satisfied: appropriation, lack of consent, and dishonest intent. The crime may be aggravated as theft from a motor vehicle.

(B) Assault of Ava — Causation and Culpable Homicide

Crimes: Assault and Culpable Homicide — Thin Skull Rule

[ISSUE] Is David guilty of the assault of Ava and, given her subsequent death, culpable homicide?

[RULE] Assault is any intentional attack upon the person of another with evil intent: *Atkinson v HM Advocate* (1987 SCCR 534). Culpable homicide arises from an unlawful act (here, assault) causing death. The thin skull rule requires the accused to take the victim as they find them: *McKinnon v HM Advocate* (2003 JC 29). On causation, a victim's refusal of medical treatment does not break the chain of causation unless it is "so unreasonable and so extreme" as to constitute a novus actus interveniens: *HM Advocate v Purcell* (2008 JC 131). The question of delay by third parties is a factual matter of causation.

[APPLICATION] David deliberately pushed Ava forcefully out of the way, causing her to fall and suffer a stress-induced heart attack. This is an intentional application of force — assault. Ava had a pre-existing heart condition. Under the thin skull rule, David must take Ava as he finds her; her vulnerability does not exonerate him. Ava was subsequently discovered and placed on life support; she died a week later when it was withdrawn. The doctors stated that had she been found sooner she might not have died. The delay in finding Ava was not caused by any act of Ava herself — it was circumstantial. The causal chain was not broken by any novus actus interveniens. The withdrawal of life support was a medical decision that the law treats as part of the natural consequences of the original assault.

[CONCLUSION] David is guilty of the assault of Ava and, given that the assault caused her death (through the chain of cardiac arrest — delayed discovery — withdrawal of life support), culpable homicide. The thin skull rule and causation principles confirm David's liability despite the delay in Ava being found.

(C) Threatening Words to Monique — Threatening Behaviour / Breach of the Peace

Crime: Threatening or Abusive Behaviour — s.38 Criminal Justice and Licensing (Scotland) Act 2010

[ISSUE] Did David commit a criminal offence by making threats and shouting insults at Monique?

[RULE] Section 38 of the Criminal Justice and Licensing (Scotland) Act 2010 provides that a person commits an offence if they behave in a threatening or abusive manner and a

reasonable person would consider the behaviour to be threatening or abusive, and they either intend to cause fear or alarm or are reckless as to whether they do so. Under common law breach of the peace, the conduct must be "severe enough to cause alarm to ordinary people": *Smith v Donnelly*. The context — a domestic garden — may be relevant to whether the disturbance is sufficiently public.

[APPLICATION] David shook his fist, shouted "You ungrateful bitch! Stay out of my way the rest of the day or the only thing I'll do with this necklace is use it to choke you with", and continued shouting insults at Monique. The direct threat to choke Monique with the locket is a specific, targeted threat of violence. This conduct is objectively threatening and abusive. The threat to choke her is more than mere rudeness — it is a specific threat of physical violence. Even in a private domestic garden, threatening behaviour that causes fear to the person it is directed at and that bystanders could observe may fall within s.38.

[CONCLUSION] David is very likely guilty of threatening or abusive behaviour under s.38 of the 2010 Act. The specific threat to use the locket to choke Monique crosses from rudeness into a credible threat of violence. Breach of the peace at common law may also apply if the conduct was sufficiently public-facing.

Question 6 — Horace's Criminal Liability

Horace is studying Politics at University. He is of the view that all of the female students in his class find him attractive. He invites a female student named Carrie to his flat to discuss the essay for the course which is due in a couple of days. When Carrie arrives at his flat, he shows her straight into his bedroom. She is a little alarmed by this, but she sits on the edge of his bed as this is the only available seat. Horace sits beside her and puts his arm around her. Carrie says, 'Don't touch me. I'm leaving.' Horace thinks that Carrie would not have sat on the bed if she was not attracted to him. He pushes her onto her back and inserts his penis into her mouth. Carrie moves away and runs out of the flat in tears.

The day on which the essay is due soon arrives. Horace has not prepared an essay, but nonetheless he considers that he is entitled to a good grade. He knows that Jacob is one of the most intelligent students in his class, so he decides that Jacob should 'help' him achieve this. He waits in the bushes outside of the entrance to the Politics department at the university. When Horace sees Jacob approaching carrying a paper copy of his essay, Horace jumps out from behind the bushes wearing a mask and brandishing a kitchen knife. He shouts at Jacob: 'Hand over the essay or you are dead'. Jacob shrieks in fear, drops the essay onto the pavement, and runs away.

Horace picks up the essay from the pavement, pleased that it is now in his possession. He takes it to the office of his professor in the Politics department. He hands the essay to Professor Jones, who thanks Horace for handing his essay in on time. Horace responds by telling her that he hopes that she will enjoy reading his essay. Professor Jones is indeed very impressed by the essay and awards Horace an 'A' grade. Jacob, who did not tell anyone what happened as he was worried, he would not be believed, is awarded zero marks by Professor Jones on the basis that he failed to prepare and submit an essay.

Which crimes in Scots criminal law may have been committed by Horace? Give full reasons for your answer, citing authority as appropriate.

Horace's conduct raises potential liability for rape under the Sexual Offences (Scotland) Act 2009, robbery of Jacob's essay, and fraud in relation to submitting the essay and obtaining the grade.

(A) Sexual Assault on Carrie — Rape

Crime: Rape — s.1 Sexual Offences (Scotland) Act 2009

[ISSUE] Is Horace guilty of rape of Carrie?

[RULE] Under s.1 of the Sexual Offences (Scotland) Act 2009, a person commits rape if they penetrate the vagina, anus, or mouth of another person with their penis without that person's consent and without any reasonable belief in consent. Section 12 defines consent: a person consents if they agree by choice and have the freedom and capacity to make that choice. Section 16 provides a list of circumstances in which consent is conclusively absent

(e.g., use of violence). The accused's belief in consent must be reasonable — an unreasonable but genuine belief will not suffice.

[APPLICATION] Carrie clearly and explicitly withdrew consent: she said "Don't touch me. I'm leaving." Horace then physically pushed her onto her back and inserted his penis into her mouth. Carrie's words were an unambiguous refusal. There was no consent. Horace's belief that Carrie "would not have sat on the bed if she was not attracted to him" is wholly unreasonable — Carrie sat on the bed because it was the only available seat, not as a signal of consent. An objectively reasonable person would recognise that (a) sitting on a bed for lack of other seating is not consent, and (b) a direct verbal refusal ("Don't touch me. I'm leaving") is an unequivocal withdrawal of consent. Horace had no reasonable basis for any belief in consent.

[CONCLUSION] Horace is guilty of rape under s.1 of the Sexual Offences (Scotland) Act 2009. Carrie explicitly refused consent, there was penile penetration of the mouth, and no reasonable belief in consent existed given Carrie's clear verbal refusal.

(B) Taking Jacob's Essay — Robbery

Crime: Robbery — Common Law

[ISSUE] Is Horace guilty of robbery of Jacob's essay?

[RULE] Robbery is theft accomplished by personal violence or threats: the taking must be accompanied by violence to the victim or threats placing them in fear. Robbery can be committed through threats alone without physical contact, provided the victim is genuinely alarmed: *Gilmour v McGlennan* (1993 SCCR 837). The subject matter of robbery need not be money; it can be any property with value. In Scots law an essay is property capable of being stolen or robbed.

[APPLICATION] Horace wore a mask, brandished a kitchen knife, and threatened Jacob: "Hand over the essay or you are dead." Jacob shrieked in fear and dropped the essay before running away. Horace then took possession of the essay. The threat was of immediate deadly violence, communicated with a weapon and a death threat. Jacob was genuinely alarmed (he shrieked and ran). This is a textbook robbery — property taken by means of immediate threats of violence causing actual fear. The use of a replica or real weapon in a threatening manner is sufficient. There is clear wicked intention in the threat and the taking.

[CONCLUSION] Horace is guilty of robbery of the essay. All elements are present: property belonging to Jacob, taken by means of immediate threats of violence, causing Jacob to be genuinely alarmed and to surrender the property.

(C) Submitting Jacob's Essay as His Own — Fraud

Crime: Fraud — Common Law

[ISSUE] Is Horace guilty of fraud in relation to submitting Jacob's essay to Professor Jones?

[RULE] Fraud requires: (1) a false pretence; (2) practised deliberately to achieve a specific practical result; and (3) a causal link between the pretence and the result: *Adcock v Archibald* (1925 JC 58). A statement of intention that is false constitutes a false pretence: *Richards v HM Advocate* (2009 SCCR 101). Presenting a piece of work as one's own when it is not constitutes a false assertion of authorship.

[APPLICATION] Horace handed Jacob's essay to Professor Jones and told her "he hoped she would enjoy reading his essay" — an express false representation that the work was his own. This is a clear false pretence of authorship. Professor Jones accepted the essay as Horace's work and awarded him an A grade — the practical result. The causal link between the false pretence and the result (obtaining the A grade) is direct. Additionally, Jacob was awarded zero marks as a consequence of the submission. There is no de minimis rule in Scots fraud; inducing someone to do something they otherwise would not have done is sufficient. The academic grade obtained by deception is a definite practical result.

[CONCLUSION] Horace is guilty of fraud. He falsely represented the essay as his own work, Professor Jones was induced to act on that false pretence (by awarding the grade), and the practical result — obtaining the A grade — was caused by the fraud. Jacob suffered the further consequence of receiving zero marks as a collateral result of the fraud.

Question 7 — Eliza: Available Defences

Eliza is out for a walk in the suburbs, when she notices a man walking behind her on the street carrying a baseball bat. She crosses the street, and notices that the man does too. She becomes convinced that he is following her and thinks that he plans to attack her. There is no one else on the street, and she does not have any mobile phone signal. However, Eliza spots a bicycle propped against a garden fence. Reasoning that she will get away faster with that, she jumps on to the bicycle and pedals off. Looking over her shoulder, she notices almost immediately that the man has gone inside a house, but she carries on cycling for several kilometres until she gets back to the town centre.

Eliza is cycling down the high street when Sandra steps out in front of her. She is not pleased to see Sandra, with whom she used to go to school with, all of these years later. Sandra tells Eliza that she has a job for her. It turns out that Sandra wants Eliza to take part in the robbery of a jewellery shop the next day. Sandra tells Eliza that, if she says “no”, she will sneak into Eliza and her husband’s house one night while they are sleeping and “break all of their bones”. Eliza was afraid of Sandra when they were at school and believes all that she says about injuring her and her husband. She does not want this to happen, so she meets up with Sandra the next day and follows her instructions. This involves Eliza going into the jewellery shop wearing a mask and threatening staff and customers with a replica firearm, while Sandra takes the jewellery from the display cabinet.

When Eliza eventually gets home after the incident at the jewellery shop, she is still shaken by the experience. Eliza’s husband can see that she is distressed, although he does not know why. He makes her a cup of tea and, without her knowledge, dissolves two of the anti-anxiety tablets he has been prescribed by the doctor into the cup of tea (even though the instructions state that only one tablet is to be taken at a time). He thinks that this will help to calm her down. Eliza feels very strange immediately after that. She goes outside, takes a cricket bat from the garden shed and uses it to start smashing her neighbour’s collection of ceramic garden ornaments. She is vaguely aware that this is wrong, but she feels that she is unable to stop herself.

Eliza has been charged with the theft of the bicycle, robbery in relation to the incident at the jewellery shop, and vandalism of the garden ornament collection. Which defences in Scots criminal law might be available to her and why? Give full reasons for your answer, citing authority as appropriate.

Eliza has been charged with theft of the bicycle, robbery at the jewellery shop, and vandalism of garden ornaments. The question asks which defences might be available to her.

(A) Theft of the Bicycle — Necessity

Defence: Necessity

[ISSUE] Does Eliza have a defence of necessity to the theft of the bicycle?

[RULE] Necessity is available in Scots law where the accused faced an immediate and serious danger, had no reasonable alternative, and the response was proportionate to the threat. It is a narrow defence. Critically, once the necessity has abated, the accused must cease the conduct — the defence does not extend to use of the property beyond what the emergency requires.

[APPLICATION] Eliza saw a man following her with a baseball bat on a deserted street with no mobile signal. She reasonably believed she was in imminent danger of attack. Taking the bicycle to escape quickly was a proportionate response to an apparent immediate threat of serious violence. However, critically, she looked back almost immediately and saw the man had gone inside a house — the threat had evaporated. Despite this, she continued cycling for several kilometres into the town centre. The necessity defence covers only the initial taking and the period of genuine emergency. Once she saw the man had gone inside, the necessity defence was spent. Her continued use of the bicycle was simply theft.

[CONCLUSION] Eliza has a partial necessity defence covering the initial taking of the bicycle while she believed she was in danger. Once she saw the man had entered a house, the necessity ended. Her continued riding of the bicycle for several kilometres thereafter is not covered by the defence and will constitute theft.

(B) Robbery at the Jewellery Shop — Coercion

Defence: Coercion / Compulsion

[ISSUE] Does Eliza have a defence of coercion to the robbery charge?

[RULE] Coercion requires: (1) threats of immediate death or serious bodily harm; (2) directed at the accused or someone close to them; (3) the accused had no reasonable opportunity to escape; and (4) the accused did not voluntarily expose themselves to coercion: *Thomson v HM Advocate* (1983 JC 69). The defence is available to robbery.

[APPLICATION] Sandra threatened to break all of Eliza and her husband's bones while they slept. These are threats of serious bodily harm directed at Eliza and her husband. Eliza genuinely believed Sandra from their school years and was terrified. However, as with Question 2, the threat was made the day before the robbery — Eliza had time to contact the police. The immediacy requirement is therefore potentially problematic. The courts will consider whether a reasonable person in Eliza's position would have contacted the police. Unlike Question 2, Eliza had until the next morning to seek police assistance, which may make the lack of escape route more difficult to establish. However, the specific, credible, and personal nature of the threat (sleeping in their own home at night) and Eliza's genuine terror make the defence arguable.

[CONCLUSION] Eliza has a reasonable but imperfect coercion defence to the robbery charge. The main weakness is the overnight gap between threat and offence suggesting a reasonable opportunity to seek police assistance. The jury must weigh the subjective terror against the objective reasonableness of seeking help. The defence is likely to be left to the jury.

(C) Vandalism of Garden Ornaments — Non-Insane Automatism

Defence: Non-Insane Automatism (*Ross v HM Advocate*)

[ISSUE] Does Eliza have a defence to vandalism in relation to the smashing of the garden ornaments?

[RULE] Non-insane automatism requires: (1) an external factor; (2) which was unforeseeable and not self-induced; and (3) which resulted in a total alienation of reason: *Ross v HM Advocate* (1991 JC 210) and *Sorley v HM Advocate* (1992 SCCR 396). Crucially, unlike Annie in Question 2, the question is whether the accused was responsible for the external factor.

[APPLICATION] Eliza's husband, without her knowledge, dissolved two of his anti-anxiety tablets into her tea — double the prescribed dose. This was done entirely without Eliza's knowledge or consent. This is a pure external factor: the introduction of an unknown substance into her drink by a third party, directly analogous to the facts of *Ross v HM Advocate* where the accused had LSD placed in his drink without his knowledge. Eliza could not have foreseen this — she did not know the medication was in the tea, let alone that it was double the dose. The effect left her "vaguely aware that this is wrong, but unable to stop herself" — arguably approaching total alienation of reason, though the partial awareness may be a difficulty. The critical distinction from Annie's situation (Question 2) is that here the external factor was entirely imposed on Eliza without her knowledge.

[CONCLUSION] Eliza has a strong non-insane automatism defence to the vandalism charge. The external factor (medication dissolved in her tea without her knowledge by her husband) mirrors the *Ross v HM Advocate* scenario. She did not voluntarily ingest the substance. The remaining question is whether her partial awareness constitutes total alienation of reason — this will be for the jury to assess, but the defence is substantially more credible than Annie's situation.

Question 8 — Jeremy's Criminal Liability

Jeremy is married to Clara, who is, unbeknownst to Jeremy, having an affair with her colleague Robert. One morning Clara is at work and decides to tell Jeremy the truth. She telephones Jeremy, who is at home, and informs him that she is having a sexual relationship with Robert and that she plans to leave him to be with Robert. Jeremy is very upset and angry at this news. He sits at home for several hours pondering what to do and eventually decides to go to the office where Clara and Robert work to confront them. Before leaving the house, he grabs a knife from the kitchen.

On arriving at the office building in which Clara and Robert work, Jeremy notices that there is a CCTV camera above the front door. He decides he needs to wear a baseball cap, which will hide his face, when he enters the building. He crosses the street into the park, and waits in the bushes until he sees Joe, who is wearing a cap, walking past. He jumps out from behind the bushes brandishing the kitchen knife and shouts: "Hand over the cap or you are dead". Joe shrieks in fear and removes the cap, before handing it to Jeremy and running away.

Jeremy then enters the office building and takes the stairs up to the floor on which Clara and Robert work. When he arrives, he is enraged to see the two of them standing in conversation, and marches over. He stabs Clara in the chest with the knife, and she dies almost immediately. He then stabs Robert in the neck. Although Robert is critically injured, he survives. Jeremy heads back down the stairs, throwing the knife in a rubbish bin he passes. On the next floor down, Jeremy meets Michael, another office worker, on the landing of the stairwell. Michael asks Jeremy what he is doing in the office building. Jeremy does not want to answer this question, so he grabs Michael's arm and twists it to try to make him get out of the way. Michael tries to break free from Jeremy's grip, but as he does so he loses his balance and falls down the next flight of stairs. He bangs his head on the concrete wall at the bottom of the stairs and dies instantly.

Which crimes in Scots criminal law may have been committed by Jeremy? Give full reasons for your answer, citing authority as appropriate.

Jeremy's conduct raises potential liability for robbery of Joe's cap, murder of Clara, attempted murder of Robert, and culpable homicide or murder of Michael.

(A) Robbery of Joe's Cap

Crime: Robbery — Common Law

[ISSUE] Is Jeremy guilty of robbery of Joe's baseball cap?

[RULE] Robbery is theft accomplished by personal violence or threats. The threat must be of immediate harm and used to overcome resistance or facilitate the taking. No physical contact is required if the threat is of immediate serious harm: *Gilmour v McGlennan*.

[APPLICATION] Jeremy brandished a kitchen knife at Joe and threatened: "Hand over the cap or you are dead." Joe shrieked in fear, removed the cap, and handed it to Jeremy before running away. The knife was a real weapon (unlike the replica in Gilmour) and the death threat was direct and immediate. Joe was genuinely alarmed. The cap was then taken. All elements of robbery are present: property, taken by immediate threats of violence, causing genuine alarm in the victim who surrendered the property.

[CONCLUSION] Jeremy is guilty of robbery of the baseball cap.

(B) Murder of Clara

Crime: Murder — Provocation Defence Considered

[ISSUE] Is Jeremy guilty of murder of Clara, and can he raise provocation?

[RULE] Murder requires wicked intention to kill or wicked recklessness: *HM Advocate v Drury*. Provocation by mere words alone can reduce murder to culpable homicide in Scots law: *HM Advocate v McKean* (1996 SCCR 402). Requirements: (1) genuinely provocative act; (2) immediate loss of self-control; (3) proportionate response. A cooling-off period is destructive of the spontaneity requirement.

[APPLICATION] Jeremy deliberately armed himself with a kitchen knife, travelled to the office, and stabbed Clara in the chest — she died immediately. Clara's phone call informing Jeremy of the affair is a potential source of provocation. However, Jeremy spent "several hours" contemplating before acting and took deliberate steps including arming himself and travelling to the location. This cooling-off period is fatal to the provocation defence. The premeditation (arming, travelling with the knife, seeking them out) is inconsistent with the sudden loss of self-control required by provocation.

[CONCLUSION] Jeremy is guilty of murder of Clara. The provocation defence will almost certainly fail due to the substantial cooling-off period, the premeditated arming of himself, and the deliberate journey to the office. These factors demonstrate planned intent rather than spontaneous loss of control.

(C) Stabbing of Robert — Attempted Murder

Crime: Attempted Murder — Common Law

[ISSUE] Is Jeremy guilty of attempted murder of Robert?

[RULE] Attempted murder requires a wicked intention to kill and a substantial step toward the commission of the killing, beyond mere preparation: *HM Advocate v Camerons* (1911 JC 110). Robert's survival does not negate the charge.

[APPLICATION] Jeremy stabbed Robert in the neck with a knife immediately after fatally stabbing Clara. A stab to the neck is objectively life-threatening and demonstrates wicked intention to kill. Robert survived but was critically injured. Jeremy had the same premeditated intent when dealing with Robert as with Clara. There is no doubt he intended to kill Robert.

[CONCLUSION] Jeremy is guilty of attempted murder of Robert.

(D) Death of Michael — Murder or Culpable Homicide

Crime: Culpable Homicide (Unlawful Act) or Murder — Common Law

[ISSUE] Is Jeremy guilty of murder or culpable homicide in relation to Michael's death?

[RULE] Culpable homicide arises where death is caused by an unlawful act (assault) without wicked intention or wicked recklessness as to life. Assault is any intentional application of force with evil intent. The thin skull rule applies: the accused takes the victim as they find them. Causation requires that the accused's act substantially contributed to death and no novus actus interveniens broke the chain.

[APPLICATION] Jeremy grabbed Michael's arm and twisted it to force him aside. This is an intentional application of force — assault. Michael tried to break free and lost his balance, falling down a stairwell and dying from a head injury. The question is whether Michael's attempt to break free was a novus actus interveniens. It was not a free and deliberate act — it was a natural and instinctive reaction to being physically restrained by an assailant. The fall was the direct consequence of the assault. This is not wicked recklessness as to life — Jeremy was trying to get past Michael, not kill him — so the charge should be culpable homicide. If however the prosecution argues that Jeremy, who had just killed two people and had used a knife, created an extreme situation making death a foreseeable consequence of any resistance, a wicked recklessness argument might be made, though this seems a stretch.

[CONCLUSION] Jeremy is most likely guilty of culpable homicide (unlawful act) in respect of Michael's death. The assault caused death through a naturally resulting chain of events; no novus actus interveniens intervened. The charge will be culpable homicide rather than murder as there is insufficient evidence of wicked intention or wicked recklessness as to Michael's life specifically.

Question 9 — Sally's Criminal Liability

There is an annual arts and crafts fair in the town where Sally lives. This involves a competition where competitors enter an item of jewellery that they have made by hand. There is a £250 prize for winning. Sally does not know how to make jewellery, but nonetheless wants to win the prize money. She also knows that Gemma, who lives nearby, is entering the competition and is reputed to be highly skilled. Sally decides that Gemma is going to “help” her win the competition. On the morning of the fair Sally hides behind some bushes on the street where Gemma lives. When she sees Gemma walking down the street carrying a necklace in a display box, she jumps out from behind the bushes wearing a mask and brandishing a kitchen knife. She shouts: “Hand over the necklace or you are dead”. Gemma shrieks in fear, drops the display box containing the necklace onto the pavement, and runs home. Gemma decides not to attend the fair anymore, as she is upset by the experience.

Meanwhile Sally removes the necklace from the display box and places it in her pocket. She drops the mask and the knife back at her house, then proceeds to take the necklace to the fair. She hands the necklace to the competition’s organiser, Susan, and tells Susan that she hopes that the judges will like the necklace she has made. At the end of the fair, all of the items of jewellery entered into the competition are appraised by the judges. Sally is declared the winner and awarded the £250 prize.

After the fair Sally walks towards her home, passing by her neighbour Megan’s house. Megan sees Sally walking past her house and invites her in for a glass of wine. Sally enters the house, walking past Megan who is holding the door open for her. Megan tells Sally that she has heard that Sally won a competition at the fair. Sally wants to leave as she does not want to discuss the competition, but Megan happens to be standing between her and the door. Sally places her hand on Megan’s shoulder and forcefully pushes her out of the way, before running out of the door. Megan, who has a heart condition, falls backwards onto the floor and suffers a stress-induced heart attack. She is discovered by her husband when he returns home later that evening and rushed to hospital in an ambulance, where she is placed on a life support machine. A week later, there is no improvement, and the life support machine is switched off. Megan is pronounced dead. According to the doctors who treated Megan, if she had been found sooner, she might not have died.

Which crimes in Scots criminal law may have been committed by Sally? Give full reasons for your answer, citing authority as appropriate.

Sally's conduct raises potential liability for robbery of Gemma's necklace, fraud in relation to the competition, assault and culpable homicide of Megan.

(A) Robbery of Gemma's Necklace

Crime: Robbery — Common Law

[ISSUE] Is Sally guilty of robbery of Gemma's necklace?

[RULE] Robbery is theft accomplished by personal violence or threats of immediate harm, used to overcome resistance or obtain property: *Gilmour v McGlennan* (1993 SCCR 837). A weapon, mask, and death threat are paradigm examples of robbery.

[APPLICATION] Sally concealed herself, wore a mask, brandished a kitchen knife at Gemma, and threatened "Hand over the necklace or you are dead." Gemma was terrified, dropped the necklace, and ran home. Sally took the necklace. This is a textbook robbery — property taken by means of a direct threat of immediate deadly violence causing genuine alarm.

[CONCLUSION] Sally is guilty of robbery of the necklace from Gemma.

(B) Entering the Necklace in the Competition — Fraud

Crime: Fraud — Common Law

[ISSUE] Is Sally guilty of fraud in relation to the jewellery competition?

[RULE] Fraud requires: (1) a false pretence; (2) deliberately intended to achieve a specific practical result; (3) a causal link between pretence and result: *Adcock v Archibald* (1925 JC 58). An implied representation — by conduct — can constitute a false pretence: *Barnard*.

[APPLICATION] Sally told Susan (the organiser) "she hoped the judges would like the necklace she had made." This is an express false representation of authorship — Sally did not make the necklace. She submitted a stolen necklace as her own handmade entry. The judges appraised it, Sally was declared the winner, and she received £250. The causal link between the false pretence and the prize money is direct and clear. The mens rea is present — Sally knew the necklace was not her own creation and deliberately misrepresented it.

[CONCLUSION] Sally is guilty of fraud. She expressly misrepresented the stolen necklace as her own handmade jewellery, the competition organiser and judges were induced to act on that false pretence, and the practical result — winning £250 — was directly caused by the fraud.

(C) The Push of Megan — Assault and Culpable Homicide

Crimes: Assault and Culpable Homicide — Thin Skull Rule and Causation

[ISSUE] Is Sally guilty of the assault of Megan and, given her subsequent death, culpable homicide?

[RULE] Assault: intentional attack with evil intent (*Atkinson v HM Advocate*). Culpable homicide: unlawful act causing death without wicked recklessness. Thin skull rule: the accused takes the victim as they find them (*McKinnon v HM Advocate*). Causation: the chain is not broken unless there is a free, deliberate, and extreme novus actus interveniens (*HM Advocate v Purcell*). The delayed discovery of the victim and subsequent withdrawal of life support are treated in law as consequences within the causal chain of the original assault, not as independent breaks in that chain.

[APPLICATION] Sally forcefully pushed Megan to escape the house. Megan suffered a stress-induced heart attack and fell to the floor. She was not discovered until her husband returned in the evening, and she later died when life support was withdrawn. The facts are closely analogous to Question 5 (David and Ava). The thin skull rule means Sally must take Megan as she finds her, heart condition and all. The delayed discovery was not caused by any act of Sally or Megan — it was circumstantial. The withdrawal of life support is a standard medical decision forming part of the natural chain of consequences. The medical evidence that earlier discovery might have prevented death does not break the causal chain — it merely shows Sally's assault was a material cause of death, which suffices.

[CONCLUSION] Sally is guilty of assault of Megan and culpable homicide. The thin skull rule and Purcell causation principles confirm her liability despite the delay in discovery and the role of life support withdrawal. The charge is culpable homicide rather than murder — there was no wicked intent or wicked recklessness as to Megan's life; Sally simply wanted to get out of the house.

Question 10 — Rory's Criminal Liability

Rory is employed at a marketing company. He is of the view that all of his female colleagues find him attractive. He invites a female colleague named Lisa to his apartment one evening, telling her it will give them the chance to work on a presentation they have to deliver together. When Lisa arrives at his apartment, Rory shows her straight into his bedroom. She is a little alarmed by this, but she sits on the edge of his bed as this is the only available seat. Rory sits beside her and puts his arm around her. Lisa says: "Don't touch me. I'm leaving". Rory thinks that Lisa would not have sat on the bed if she was not attracted to him. He pushes her onto her back and inserts his penis into her mouth. Lisa moves away and runs out of the apartment in tears.

The next morning Rory decides to go into the town centre to do some shopping. Once outside he remembers that his car is in the garage as it is being repaired. However, he notices his neighbour David's bicycle leaning against the shed in the communal garden. Rory shouts "Can I take your bicycle?" to David, who happens to be outside in the garden hanging out his laundry on the washing line. David refuses, replying that he needs to use the bicycle later that day. Rory jumps on the bicycle anyway and, as he cycles away, he shouts over his shoulder, "Don't worry David - I'll bring it back at some point!"

Rory cycles to the town centre and dismounts from the bicycle. He is walking down the street, wheeling the bicycle alongside. He is so preoccupied with his thoughts that he does not notice George, a tourist from Australia who is visiting the town, walking towards him. They nearly walk into one another, but the collision is avoided when George moves out of the way. George says a polite hello to Rory. Startled and annoyed, Rory utters several swear words, and shakes his fist in the air while shouting angrily at George: "Stay out of my way or you'll be sorry! Actually, every single person in this town needs to stay out of my way or they'll be sorry!" Although other people on the street appear to be shocked, George, who normally works as a police officer in Australia, is not alarmed and tries to calm Rory down.

Which crimes in Scots criminal law may have been committed by Rory? Give full reasons for your answer, citing authority as appropriate.

Rory's conduct raises potential liability for rape of Lisa, theft of David's bicycle, and breach of the peace or threatening behaviour in relation to George and bystanders.

(A) Sexual Assault on Lisa — Rape

Crime: Rape — s.1 Sexual Offences (Scotland) Act 2009

[ISSUE] Is Rory guilty of rape of Lisa?

[RULE] Under s.1 of the Sexual Offences (Scotland) Act 2009, rape is penile penetration of the vagina, anus, or mouth without consent and without reasonable belief in consent. Section 12 defines consent as agreement by choice with freedom and capacity. The reasonableness of any belief in consent is assessed objectively.

[APPLICATION] The facts of this question are materially identical to Question 6 (Horace and Carrie). Lisa explicitly said "Don't touch me. I'm leaving" — an unambiguous withdrawal of consent. Rory then pushed her onto her back and penetrated her mouth with his penis.

Lisa's sitting on the bed (the only available seat) cannot objectively constitute consent or a reasonable basis for believing in consent. Rory's subjective assumption that Lisa was attracted to him because she sat on the bed is wholly unreasonable. A reasonable person would recognise that sitting on a bed for lack of alternative seating, followed by an explicit verbal refusal, is the clearest possible absence of consent.

[CONCLUSION] Rory is guilty of rape under s.1 of the Sexual Offences (Scotland) Act 2009. There was penile penetration of the mouth, absence of consent (explicitly stated by Lisa), and no reasonable basis for any belief in consent.

(B) Taking David's Bicycle — Theft

Crime: Theft — Common Law

[ISSUE] Is Rory guilty of theft of David's bicycle?

[RULE] Theft requires appropriation of property without consent and with intent to deprive, even temporarily: *Milne v Tudhope* (1981 JC 53). Express refusal by the owner negates any possible consent.

[APPLICATION] The facts of this question are materially identical to Question 4 (Max and Kevin's bicycle). David expressly refused Rory's request — "he needs to use the bicycle later that day." Rory took it anyway. Rory's statement "I'll bring it back at some point" parallels Max's statement identically. An express refusal means there is no consent; temporary deprivation following an express refusal is theft in Scots law.

[CONCLUSION] Rory is guilty of theft of the bicycle. David's express refusal negated any possible consent. Rory's stated intention to return it "at some point" does not prevent liability for theft under Scots law.

(C) Threats to George and Bystanders — Breach of the Peace / Threatening Behaviour

Crime: Breach of the Peace / s.38 Criminal Justice and Licensing (Scotland) Act 2010

[ISSUE] Did Rory commit a criminal offence by shouting threats at George and the public?

[RULE] These facts are materially identical to Question 3 (Sylvia and Monica). Breach of the peace requires conduct "severe enough to cause alarm to ordinary people": *Smith v Donnelly* (2002 JC 65). Under s.38 of the Criminal Justice and Licensing (Scotland) Act 2010 the conduct must be threatening or abusive and a reasonable person would so consider it, combined with intention or recklessness as to causing fear or alarm. The personal composure of the direct addressee (a trained police officer) is not decisive — the reaction of ordinary bystanders is the relevant measure.

[APPLICATION] Rory shouted: "Stay out of my way or you'll be sorry! Actually, every single person in this town needs to stay out of my way or they'll be sorry!" He shook his fist and uttered swear words. Other people on the street appeared shocked. George, as an Australian police officer, was not alarmed, but this mirrors the Sylvia/Monica situation exactly — the ordinary bystanders' shocked reaction is what matters. The generalised threat to everyone in the town escalates the conduct beyond a personal altercation into public threatening behaviour. Rory was also in an agitated state and at least reckless as to whether his behaviour caused fear or alarm.

[CONCLUSION] Rory is guilty of breach of the peace and/or threatening or abusive behaviour under s.38 of the 2010 Act. As in Question 3 (Sylvia), George's composure as a trained officer does not exonerate Rory — the reaction of the ordinary shocked bystanders and the generalised public threat provide the necessary foundation for both charges.

Question 11

On Friday evening Lando decides to attend a house party. While at the party, he is given a bottle of beer which, unbeknownst to him, has been spiked with LSD, a hallucinogenic drug. Soon after drinking the beer Lando starts to believe that he is being chased by giant flesh-eating beetles. He starts to run around, shouting that there are giant beetles everywhere. He then picks up a hockey stick that he sees in the corner and starts to fight off the beetles. Unfortunately, these flesh-eating beetles are in fact Louise and Jim, two other guests at the party. Another guest soon removes the hockey stick from Lando's grasp, but Louise and Jim are both very bruised, and subsequently treated at the hospital for possible concussion. On Saturday evening Lando decides to drive to a different party across town. Mark, a local gangster, is at the party. Lando drinks several beers and stays out of Mark's way. Later that evening Lando goes outside into the car park next to the block of flats to smoke a cigarette. The car park is deserted. Suddenly Mark and two of his friends appear and they start to punch and kick Lando. He falls to the ground. Mark and his friends walk off and disappear around the corner. Lando crawls to his car where he gets in and he drives away. He thinks he will be safe from his attackers if he drives to his friend's house. He is pulled over by the police as he is driving erratically, and breathalysed. He is well over the legal limit to drive after consuming alcohol.

Lando attends yet another house party the following weekend. He is alone in the kitchen when Boris, his arch-rival, enters the room. Lando mutters a rude insult under his breath. Boris hears, exclaiming "What did you call me!" He walks up to Lando and shoves his shoulder. Lando tells Boris to calm down, which enrages Boris further. Boris tries to punch Lando. Lando wonders if he should try to jump out of the window as the flat is only on the first floor, but he doesn't know what is underneath the window and he also wants to 'stand his ground' as he dislikes Boris. As Boris continues to swing punches at Lando, Boris shouts "I'm going to teach you a lesson". Lando sees Boris reaching into his pocket and can see that there is an object in his trouser pocket. Lando is convinced that it is a knife. In a panic Lando grabs a kitchen knife that is sitting on the counter next to him and stabs Boris in the stomach. Boris falls to the ground. Upon hearing Boris scream in pain, other party guests come into the room and see what has happened. They call the police and an ambulance. When the police look in Boris' pocket, they do not find a knife – they find an asthma inhaler. Boris is taken to accident and emergency, where he is treated and survives.

Lando has been charged with assault in relation to the 'flesh-eating beetles' incident; driving a motor vehicle with an alcohol concentration above the prescribed limit following the Saturday evening party; and with attempted murder in relation to the incident with Boris. Which, if any, DEFENCES in Scots criminal law may be available to Lando and why? Give full reasons for your answer, citing authority as appropriate.

Question 11 — Martin's Liability Under Scots Criminal Law

Martin's conduct raises potential criminal liability across four distinct areas: (A) theft of Connor's bicycle; (B) the stabbings of Leona and Sheldon; (C) the death of Sheldon following refusal of a blood transfusion; and (D) the death of Leona following infection caused by her own interference with her wound. Each will be analysed using the IRAC method.

(A) Taking Connor's Bicycle — Theft

Crime: Theft — Common Law

[ISSUE] Did Martin commit theft of Connor's bicycle?

[RULE] Theft in Scots law is the appropriation of property belonging to another without the owner's consent and with the intention to deprive, whether temporarily or permanently. The leading authority confirming that temporary deprivation suffices in Scotland is *Milne v Tudhope* (1981 JC 53), in which the court held that an intention permanently to deprive is not required — a temporary deprivation of a significant nature falls squarely within the scope of the offence. This distinguishes the Scottish position from English law. The absence of consent is assessed objectively from all the circumstances; where an owner expressly refuses a request, consent is plainly absent.

[APPLICATION] Martin asked Connor if he could take the bicycle. Connor expressly refused, telling Martin he needed it later that day. Martin took it regardless, cycling away while shouting that he would "bring it back at some point." Two points are decisive. First, Connor's express refusal means there was no consent — the owner's position could not be clearer. Second, Martin's stated intention to return the bicycle "at some point" does not neutralise the appropriation: even a temporary taking against the owner's express wishes constitutes theft under Scots law per *Milne v Tudhope*. Martin assumed possession and control of Connor's bicycle without any authorisation.

[CONCLUSION] Martin is guilty of theft of Connor's bicycle. The express refusal of consent is fatal to any argument that the taking was lawful, and the intention to return the bicycle "at some point" does not prevent liability given that Scots law does not require an intent permanently to deprive.

(B) Stabbing of Leona and Sheldon — Assault / Attempted Murder

Crimes: Assault and Attempted Murder — Common Law

[ISSUE] Is Martin guilty of assault and/or attempted murder of Leona and Sheldon by the stabbings?

[RULE] Assault in Scots law is any intentional attack upon the person of another — any deliberate application of force done with "evil intent": *Atkinson v HM Advocate* (1987 SCCR 534). Recklessness is insufficient; the attack must be intentional. Attempted murder requires a wicked intention to kill and a substantial step in the execution of that purpose, going

beyond mere preparation into perpetration: *HM Advocate v Camerons* (1911 JC 110). The mens rea of murder itself is "wicked intention to kill" or "wicked recklessness" — an utter disregard for whether the victim lives or dies: *HM Advocate v Drury* (2001 SCCR 538). For the purposes of attempted murder, wicked intention to kill must be established; wicked recklessness alone will not suffice for attempt.

[APPLICATION] Martin stabbed Leona twice in the neck with a screwdriver, and then stabbed Sheldon in the back of the head with it as he tried to flee. These are deliberate, targeted acts of force — unquestionably assaults. The critical question is whether attempted murder is made out. Martin had collected the screwdriver from his garden shed before setting out, demonstrating premeditation. He travelled to the office specifically to confront Leona and Sheldon. Stabbing someone twice in the neck and once in the back of the head are acts objectively aimed at areas of the body where vital structures are concentrated. These facts strongly support an inference of wicked intention to kill. While Martin's exact subjective intent is a matter for the jury, the deliberate and repeated targeting of the neck and head with a sharp implement points to the requisite wicked intention. The fact that he ran away without checking on them further suggests he was indifferent to whether they lived or died. As to any possible provocation defence reducing a murder charge to culpable homicide: Martin was informed of the affair by telephone and "sat at home for a couple of hours pondering what to do" before arming himself and travelling to the office. This cooling-off period, combined with the deliberate arming and the journey, is inconsistent with the spontaneous loss of self-control required for provocation: *HM Advocate v McKean* (1996 SCCR 402).

[CONCLUSION] Martin is guilty of assault of both Leona and Sheldon. Given the nature and location of the wounds — neck (Leona, twice) and back of the head (Sheldon) — and the premeditation evidenced by arming himself in advance and travelling specifically to confront them, the charge of attempted murder of both is well founded. Any provocation defence is unlikely to succeed given the cooling-off period and deliberate preparation.

(C) Death of Sheldon — Causation and Murder / Culpable Homicide

Crime: Murder or Culpable Homicide — Refusal of Medical Treatment as Novus Actus

[ISSUE] Is Martin criminally liable for Sheldon's death, given that Sheldon refused a life-saving blood transfusion on religious grounds?

[RULE] For criminal liability to attach for a death, the accused's act must be a legally operative cause of that death. The chain of causation is broken — a novus actus interveniens arises — where a third party's free, deliberate, and informed act is so extraordinary and unreasonable that it severs the accused's responsibility: *HM Advocate v Purcell* (2008 JC 131). Critically, the court in *Purcell* held that a victim's refusal of medical treatment does not constitute a novus actus interveniens unless it is "so unreasonable and so extreme" as to be such a free and deliberate act. The thin skull rule also applies in Scots criminal law — the accused must take the victim as they find them, including their beliefs and vulnerabilities: *McKinnon v HM Advocate* (2003 JC 29). The English authorities on this point — most notably *R v Blaue* [1975] 1 WLR 1411, where a Jehovah's Witness's refusal of a blood transfusion following a stabbing was held not to break the chain of causation — are persuasive and consistent with Scots law principles, even though they are not binding. In *Blaue* the court applied the thin skull principle and held that the accused must take the victim's whole person, including their religious beliefs.

[APPLICATION] Sheldon refused a blood transfusion on religious grounds after being critically stabbed by Martin in the back of the head. The consultant advised this treatment

was necessary to save his life. The refusal was made on the basis of sincere religious conviction — a Jehovah's Witness-type refusal. This raises the question of whether such a refusal breaks the chain of causation. Applying the Purcell principle and the thin skull rule: the refusal of a blood transfusion on religious grounds, while arguably an autonomous choice, is not the kind of extreme and unreasonable act that severs the causal chain. Scots law, like English law in *Blaue*, treats an accused as having to take their victim as they find them — including their deeply held religious convictions. The refusal was not reckless, self-destructive, or capricious; it was an expression of sincere faith. Moreover, the fundamental cause of Sheldon's critical condition was the stab wound inflicted by Martin. Without the attack, no transfusion would have been needed. The decision in *Purcell* strongly supports continuity of causation in such circumstances.

[CONCLUSION] Martin is causally responsible for Sheldon's death. The refusal of a blood transfusion on religious grounds does not constitute a *novus actus interveniens* sufficient to break the chain of causation. Applying the thin skull rule and the reasoning in *Purcell* (and persuasively in *Blaue*), Martin must take Sheldon as he finds him — including his religious beliefs. Martin is therefore liable for the death of Sheldon. Combined with the earlier analysis of wicked intention, this charge should be murder. If wicked intention cannot be established to the jury's satisfaction, culpable homicide is the alternative.

(D) Death of Leona — Causation and the Victim's Own Act

Crime: Murder or Culpable Homicide — Victim's Own Conduct as Potential *Novus Actus*

[ISSUE] Is Martin criminally liable for Leona's death, given that she removed her own bandages in a distressed and confused state, causing a fatal wound infection?

[RULE] The chain of causation may be broken by the victim's own free, deliberate, and informed act: *HM Advocate v Purcell* (2008 JC 131). In *Purcell*, the court stated the test is whether the act was "so unreasonable and so extreme" as to constitute a *novus actus*. Crucially, for the victim's own act to break the chain it must be a voluntary, free, and rational act — not one resulting from a state of confusion or distress caused by the accused's original attack. The question is therefore whether Leona's act was sufficiently free, voluntary, and informed to sever the causal connection. If her confused and distressed state was a direct product of the injuries Martin inflicted, this bears significantly on the analysis.

[APPLICATION] Leona removed her bandages "in a distressed and confused state" during the night. This is not a calm, deliberate, and rational decision to refuse treatment or interfere with her own care — it is an act done in a state of mental disturbance that can fairly be characterised as flowing directly from the severe trauma caused by Martin's attack. She was not exercising informed and rational autonomy; she was acting under the grip of distress and confusion caused by her injuries. The hospital staff did everything they could but were unable to control the resulting infection. This is closely analogous to a victim in a panic taking an action that worsens their condition following the initial attack. Applying *Purcell*, the act of removing bandages in a distressed and confused state is not "so unreasonable and so extreme" as to sever the causal chain — it is a reasonably foreseeable consequence of the severe psychological and physical trauma caused by the double stab wounds to the neck. The but-for test is plainly satisfied: but for the stabbings, Leona would not have been in hospital, would not have been in a distressed and confused state, and would not have removed her bandages.

[CONCLUSION] Martin is causally responsible for Leona's death. Her removal of the bandages was not a free, deliberate, and informed act constituting a *novus actus interveniens* — it was an act done in a state of distress and confusion directly attributable to

Martin's attack. The chain of causation is not broken. Martin is therefore liable for Leona's death as well. As with Sheldon, the charge should be murder if wicked intention is established (as analysed above), or culpable homicide if the jury is not satisfied as to wicked intention.

Overall Conclusion — Martin

Summary of Martin's Criminal Liability

Martin faces the following charges under Scots criminal law:

(1) Theft of Connor's bicycle. Express refusal of consent and taking against the owner's wishes — *Milne v Tudhope* confirms temporary deprivation suffices.

(2) Murder of Sheldon. Wicked intention established by premeditation (arming himself, travelling to confront them), stab to the back of the head, and Sheldon's death. The religious refusal of a blood transfusion does not break the chain of causation — *Purcell* and the thin skull rule. Provocation fails due to cooling-off period — *McKean*.

(3) Murder of Leona. Wicked intention established on the same basis. Leona's removal of her own bandages in a distressed and confused state does not break the chain of causation — *Purcell*. The act was not sufficiently free, rational, and deliberate to constitute a *novus actus interveniens*.

(4) Alternatively, if the jury is not satisfied as to wicked intention in relation to either death, the charges would be culpable homicide (unlawful act causing death).

Question 12

On Friday evening Lando decides to attend a house party. While at the party, he is given a bottle of beer which, unbeknownst to him, has been spiked with LSD, a hallucinogenic drug. Soon after drinking the beer Lando starts to believe that he is being chased by giant flesh-eating beetles. He starts to run around, shouting that there are giant beetles everywhere. He then picks up a hockey stick that he sees in the corner and starts to fight off the beetles. Unfortunately, these flesh-eating beetles are in fact Louise and Jim, two other guests at the party. Another guest soon removes the hockey stick from Lando's grasp, but Louise and Jim are both very bruised, and subsequently treated at the hospital for possible concussion. On Saturday evening Lando decides to drive to a different party across town. Mark, a local gangster, is at the party. Lando drinks several beers and stays out of Mark's way. Later that evening Lando goes outside into the car park next to the block of flats to smoke a cigarette. The car park is deserted. Suddenly Mark and two of his friends appear and they start to punch and kick Lando. He falls to the ground. Mark and his friends walk off and disappear around the corner. Lando crawls to his car where he gets in and he drives away. He thinks he will be safe from his attackers if he drives to his friend's house. He is pulled over by the police

as he is driving erratically, and breathalysed. He is well over the legal limit to drive after consuming alcohol.

Lando attends yet another house party the following weekend. He is alone in the kitchen when Boris, his arch-rival, enters the room. Lando mutters a rude insult under his breath. Boris hears, exclaiming “What did you call me!” He walks up to Lando and shoves his shoulder. Lando tells Boris to calm down, which enrages Boris further. Boris tries to punch Lando. Lando wonders if he should try to jump out of the window as the flat is only on the first floor, but he doesn’t know what is underneath the window and he also wants to ‘stand his ground’ as he dislikes Boris. As Boris continues to swing punches at Lando, Boris shouts “I’m going to teach you a lesson”. Lando sees Boris reaching into his pocket and can see that there is an object in his trouser pocket. Lando is convinced that it is a knife. In a panic Lando grabs a kitchen knife that is sitting on the counter next to him and stabs Boris in the stomach. Boris falls to the ground. Upon hearing Boris scream in pain, other party guests come into the room and see what has happened. They call the police and an ambulance. When the police look in Boris’ pocket, they do not find a knife – they find an asthma inhaler. Boris is taken to accident and emergency, where he is treated and survives.

Lando has been charged with assault in relation to the ‘flesh-eating beetles’ incident; driving a motor vehicle with an alcohol concentration above the prescribed limit following the Saturday evening party; and with attempted murder in relation to the incident with Boris. Which, if any, DEFENCES in Scots criminal law may be available to Lando and why? Give full reasons for your answer, citing authority as appropriate.

Question 12 — Lando's Available Defences Under Scots Criminal Law

Lando faces three charges: (A) assault of Louise and Jim (the "flesh-eating beetles" incident); (B) driving with excess alcohol following the Saturday evening attack; and (C) attempted murder of Boris. The question asks which defences, if any, are available to him. Each charge will be considered in turn.

(A) Assault of Louise and Jim — Non-Insane Automatism

Defence: Non-Insane Automatism — Ross v HM Advocate 1991 JC 210

[ISSUE] Does Lando have a defence to the assault charges in relation to Louise and Jim at the first party?

[RULE] Non-insane automatism is a complete defence in Scots law, established in *Ross v HM Advocate* (1991 JC 210). Lord Justice-General Hope held that where an accused's voluntary conduct is entirely displaced by an external factor not attributable to them, resulting in a total alienation of reason and loss of self-control, the accused is entitled to acquittal. The three-part test was subsequently confirmed in *Sorley v HM Advocate* (1992 SCCR 396): (1) the accused must have been affected by an external factor; (2) that factor must have been not self-induced and unforeseeable by the accused; and (3) it must have produced a total

alienation of reason. Critically, the defence rests on the external origin of the incapacitating substance. In *Ross* itself, LSD had been added to the accused's drink without his knowledge. The court distinguished this sharply from the position of a person who voluntarily consumes intoxicants, for which no defence of automatism is available: *Brennan v HM Advocate* (1977 JC 38). In *Brennan*, the High Court held that self-induced intoxication cannot ground the automatism defence because the accused's prior recklessness in becoming voluntarily intoxicated supplies the necessary mens rea.

[APPLICATION] Lando was given a bottle of beer that had, unbeknownst to him, been spiked with LSD. He had no knowledge of or responsibility for the adulteration. This is an identical factual matrix to *Ross v HM Advocate* — an external, psychoactive substance introduced into a drink without the consumer's knowledge. Limb (1) is satisfied: the LSD was an external factor. Limb (2) is satisfied: the spiking was not self-induced and could not have been foreseen by Lando. Limb (3) requires total alienation of reason: Lando believed he was being attacked by "giant flesh-eating beetles" and was fighting them off with a hockey stick. He had completely lost contact with reality — this constitutes a total alienation of reason rather than mere impairment. He genuinely believed he was acting in self-defence against perceived creatures. The fact that he was hallucinating so severely as to mistake two human guests for giant beetles strongly supports this. The defence is plainly available.

[CONCLUSION] Lando has a complete defence of non-insane automatism to the assault charges in relation to Louise and Jim. All three limbs of the *Ross v HM Advocate* test are satisfied: the external factor was LSD in his drink, it was neither self-induced nor foreseeable, and it produced a total alienation of reason evidenced by his complete dissociation from reality. The charge of assault should fail.

(B) Driving with Excess Alcohol — Duress of Circumstances / Necessity

Defence: Duress of Circumstances / Necessity — Limited Application

[ISSUE] Does Lando have any defence to the charge of driving with excess alcohol following the attack in the car park on Saturday evening?

[RULE] The defence of necessity (or duress of circumstances) is available in Scots law in limited circumstances where the accused was faced with an immediate threat of serious harm, had no reasonable alternative but to commit the offence, and the response was proportionate to the threat. Necessity requires: (1) an immediate and serious threat to life or physical safety; (2) no reasonable alternative means of escape or protection; and (3) proportionality between the harm committed and the harm avoided: *Thomson v HM Advocate* (1983 JC 69). In the context of road traffic offences, English authorities such as *R v Willer* (1986) 83 Cr App R 225 and *R v Conway* [1989] QB 290 (persuasive in Scotland) have accepted that duress of circumstances may be available where a driver drives dangerously to escape immediate violence, provided the compulsion was direct and there was no safe alternative. The defence is narrow and courts scrutinise whether the necessity had truly abated by the time the accused was stopped.

[APPLICATION] Lando was the victim of a serious unprovoked assault in the car park — kicked and punched by Mark and two associates until he fell to the ground. He believed he needed to escape to be safe from further attack. He crawled to his car and drove off erratically. Two analytical difficulties arise. First, on the facts, Mark and his friends "walked off and disappeared around the corner" before Lando drove away. This suggests the immediate threat had already abated when he entered the car and drove. A necessity defence requires that the threat was current and immediate at the moment of the offence — not historical. Second, even if there was initial necessity in getting to the car, Lando's decision to drive "to his friend's house" rather than stopping as soon as he was safe (e.g., at

a nearby petrol station or public place) suggests the defence of necessity was spent once he was safely away from the car park. The police stopped him while driving erratically — far from the original scene of the attack. The window of genuine necessity had closed.

[CONCLUSION] The necessity / duress of circumstances defence is unlikely to succeed in relation to the drink-driving charge. By the time Lando was stopped by police, the immediate threat from Mark and his associates had passed — they had walked away and disappeared before he even entered his car. Even if the initial decision to drive was compelled by fear, he should have stopped driving once safely clear of the danger. Continuing to drive "to his friend's house" goes beyond what the necessity required. The charge of driving with excess alcohol is likely to be sustained.

(C) Attempted Murder of Boris — Self-Defence

Defence: Self-Defence — Owens v HM Advocate 1946 JC 119; Honest Belief in Threat

[ISSUE] Does Lando have a defence of self-defence to the charge of attempted murder of Boris?

[RULE] Self-defence is a complete defence in Scots law to assault and murder/attempted murder where three conditions are met: (1) the accused was in imminent danger of death or serious bodily harm; (2) there was no reasonable means of escape; and (3) the force used was necessary and proportionate to the threat: *Owens v HM Advocate* (1946 JC 119). Critically, the belief in the imminence and seriousness of the threat is assessed with reference to what the accused honestly and reasonably believed at the time: *McCluskey v HM Advocate* (1959 JC 39). The courts have accepted that where the accused genuinely and reasonably (even if mistakenly) believed they were under threat of deadly force, self-defence may be available even if the belief was factually wrong. The question of whether a mistaken belief in a threat negatives self-defence involves two sub-questions: (a) was the belief genuine? and (b) was it reasonable in the circumstances? However, Scots law does not require that the threat actually existed — it requires that the accused's honest belief in it was reasonable given the circumstances they faced. On escape: the court in *Owens* held that self-defence is not available where the accused had a reasonable opportunity to escape. The jury must consider whether, in the specific circumstances, escape was a genuine and reasonable option. On proportionality: the response must be commensurate with the perceived threat — if the accused believed the attacker had a knife, responding with a knife is not inherently disproportionate.

[APPLICATION] Lando was in a confrontation with Boris in which Boris had been physically aggressive — he shoved Lando's shoulder, then launched repeated punching attacks at him, shouting "I'm going to teach you a lesson." At the moment Lando grabbed the kitchen knife, he saw Boris reaching into his pocket and genuinely believed — based on Boris's aggressive and threatening behaviour — that Boris was retrieving a knife. Lando was wrong: it was an asthma inhaler. Three questions arise: First, on escape: Lando briefly considered jumping out of the window but did not know what was underneath and also wanted to stand his ground because he disliked Boris. The fact that Lando chose not to escape partly because he "wanted to stand his ground" and "disliked Boris" is problematic for the self-defence plea — *Owens* requires that the accused had no reasonable means of escape. Lando's subjective desire to stand his ground for personal reasons (dislike of Boris) weakens the escape limb. However, a first-floor window jump of unknown danger is not necessarily a "reasonable" means of escape and the court may accept this. Second, on honest and reasonable belief in the threat: Boris had been physically aggressive throughout the encounter and was reaching into his pocket while shouting threats. In those circumstances,

an honest belief that Boris was producing a weapon may well be reasonable — it was not an unreasonable inference given the ongoing assault and the threatening verbal conduct. Third, on proportionality: if the accused genuinely and reasonably believed Boris was about to produce a knife, responding by picking up a nearby knife and using it is capable of being viewed as proportionate force. A knife versus a perceived knife is not inherently disproportionate. The knife was, critically, already on the counter rather than brought by Lando — suggesting spontaneity rather than premeditation.

[CONCLUSION] Lando has an arguable self-defence plea to the attempted murder charge, but it faces two specific vulnerabilities. The first is the escape question: his failure to attempt the window escape, partly because he wanted to "stand his ground" due to personal animosity toward Boris, is a significant weakness. The court may find that the window presented a reasonable means of escape. The second is whether the belief in the knife was reasonable: given the aggressive and threatening context — repeated punching, verbal threats, and a hand reaching into a pocket — a jury could well accept this as an honest and reasonable belief. Overall, the defence of self-defence should be left to the jury. The partial motivation of personal dislike for Boris is the main obstacle. If the jury accepts that the belief in the knife was genuine and reasonable, and that the window was not a safe escape option, Lando is entitled to acquittal. If the jury finds the escape option was reasonable or the belief in a knife was unreasonable, the defence fails.

Overall Conclusion — Lando

Summary of Lando's Available Defences

(A) Assault of Louise and Jim: The defence of non-insane automatism under *Ross v HM Advocate* (1991 JC 210) is clearly available and should succeed. The LSD was externally administered without Lando's knowledge (not self-induced), it was unforeseeable, and it produced a total alienation of reason. The assault charge should fail.

— End of Revision Answers —